

**TENTATIVE RULINGS FOR MAY 6, 2026**  
**Department R17**  
**BEFORE THE HONORABLE JANET M. FRANGIE**  
**(sitting on assignment)**

**PLEASE NOTE: There may be multiple tentative rulings so view the entire document.**

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See [www.sb-court.org/general-information/remote-access](http://www.sb-court.org/general-information/remote-access) ) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING**

1.

| <b>CASE NUMBER</b> | <b>CASE NAME</b>                                              | <b>TYPE OF HEARING</b>                    |
|--------------------|---------------------------------------------------------------|-------------------------------------------|
| CIVRS2401036       | <i>Hiddadura Percy De Zoysa<br/>v Lorin Kenneth Rosenthal</i> | Plaintiff's Motion to Compel<br>Mediation |

**Tentative Ruling:**

**Motion:**

On February 11, 2026, Plaintiff filed a Motion to Compel Mediation with an initial hearing date of March 13, 2026 listed on the caption. Defendant was served with the motion on February 11, 20026. The Court notes that this hearing date is crossed out and a new hearing date of May 6, 2026 was inserted. The Court is unclear whether or not Defendant ever had notice of the new hearing date and is inclined to believe he did not because no opposition is filed. If Defendant did receive notice and appears at the hearing, the Court intends to grant the motion and order the parties to mediation with a completion date of July 28, 2026 at 9:00 a.m. in Department R17. If Defendant does not appear and did not receive notice then the Court will continue this motion to June 16, 2026, at 9:00 a.m. in Department R17.

On the Court's own motion, the Court makes the following further Orders:

1. The Court advances the hearing date of May 8, 2026 on Plaintiff's Motion for an order setting aside and rescinding the release and settlement agreement to today's date and continues it to July 28, 2026, at 9:00 a.m. in Department R17. This motion should be heard after mediation and before trial.
2. The Court advances the trial date of May 8, 2026 to today's date and continues the trial to September 18, 2026 at 10:00 a.m. in Department R17. The trial should occur, if at all, following mediation and the hearing on Plaintiff's other motion.

The judicial assistant is directed to give notice of the Court's ruling.

2.

| CASE NUMBER  | CASE NAME                                                                 | TYPE OF HEARING                                                   |
|--------------|---------------------------------------------------------------------------|-------------------------------------------------------------------|
| CIVRS2403011 | <i>IPFS Corporation of California<br/>v Nonstop Trucking, Inc., et al</i> | Plaintiff IPFS Corporation of California's Four Discovery Motions |

**Tentative Ruling:**

The Court rules as follows on the four unopposed Motions to Compel Discovery filed by Plaintiff IPFS Corporation of California against Defendant Nonstop Trucking, Inc.:

Motion to Compel to deem Admissions admitted (Set #1) by Defendant Nonstop Trucking, Inc.:

Grant. Requests for Admissions Requests 1-10 are deemed admitted by Defendant Nonstop Trucking, Inc.

Motion to Compel Responses to Special Interrogatories (Set #1):

Grant. Defendant Nonstop Trucking, Inc. is ordered to serve verified answers, without objection, to the Special Interrogatories (Set #1) on Plaintiff IPFS Corporation of California's attorney on or before May 30, 2026.

Motion to Compel Responses to Form Interrogatories (Set #1):

Grant. Defendant Nonstop Trucking, Inc. is ordered to serve verified answers, without objection, to the Form Interrogatories (Set #1) on Plaintiff IPFS Corporation of California's attorney on or before May 30, 2026.

Motion to Compel Responses to Request For Production of Documents (Set #1):

Grant. Defendant Nonstop Trucking, Inc. is ordered to serve verified answers, without objection, to the Request and produce all responsive documents on Plaintiff IPFS Corporation of California's attorney on or before May 30, 2026.

Sanctions:

Defendant Nonstop Trucking, Inc. is ordered to pay to Plaintiff IPFS Corporation of California's attorney the total sum of \$1,869.08 (\$1,800.00 in fees and \$69.08 in costs) on or before May 30, 2026.

Moving party is directed to give notice of the Court's rulings.

3.

| CASE NUMBER  | CASE NAME                                                | TYPE OF HEARING                        |
|--------------|----------------------------------------------------------|----------------------------------------|
| CIVRS2402711 | <i>Whitney Neilson v Etiwanda School District, et al</i> | Defendants' Motion for Attorneys' Fees |

**Tentative Ruling:**

The unopposed Motion for Attorneys' Fees filed by Defendants in this action is granted in part. The Court orders Plaintiff Whitney Neilson to pay, as and for reasonable attorneys' fees, the sum of \$22,388.50 within thirty days. The Court deducted \$600.00 in requested fees as it does not believe it reasonable to spend three hours to prepare to argue this unopposed motion.

Defendant is ordered to give notice to Plaintiff.